

Data Processing Agreement (DPA)

This DPA forms part of the Master Service Agreement between ReachNG (Processor) and [CLIENT LEGAL NAME] (Controller). It governs ReachNG's processing of personal data on behalf of the Client under the **Nigeria Data Protection Act 2023 (NDPA)**, the **NDPR 2019**, and any implementing regulations.

1. Definitions

Terms used in this DPA have the meanings set out in the NDPA / NDPR. In particular: **Data Subject**, **Personal Data**, **Processing**, **Data Controller**, **Data Processor**, and **Sub-processor**.

2. Roles

- The **Client** is the **Data Controller** of all Personal Data uploaded to or generated through the Platform regarding the Client's contacts, leads, employees, and tenants.
- **ReachNG** is the **Data Processor** acting on documented instructions from the Client.
- Where ReachNG independently determines purposes for its own business operations (billing, security monitoring, aggregated analytics), it acts as a **Data Controller** for those limited purposes.

3. Categories of Personal Data processed

Category	Source	Purpose
Full name	Client upload, Closer intake	Outreach personalisation
Phone number	Client upload, Closer intake	WhatsApp delivery
Email	Client upload, Closer intake	Email delivery
Address / area	Client upload, Closer intake	Lead context
Inbound message content	Closer / reply router	Reply classification + drafting
Engagement metadata	Platform-generated	Status tracking, opt-out enforcement

4. Processing instructions

ReachNG processes Personal Data only:

- To deliver the Services described in the MSA.
- On the Client's documented instructions (including instructions transmitted through the Platform itself, e.g. uploading a list, approving a draft).
- As required by Nigerian law, with prior notice to the Client where lawful.

ReachNG shall promptly notify the Client if, in its opinion, an instruction infringes the NDPA / NDPR.

5. Lawful basis (Controller's responsibility)

The **Client** warrants that for every Data Subject whose data it loads to the Platform, it holds a **lawful basis** under NDPR — typically: (a) existing customer relationship, (b) explicit opt-in, or (c) legitimate interest with a documented assessment.

The Client attests to this lawful basis at the point of upload (consent attestation gate).

6. ReachNG's obligations

ReachNG shall:

- **Confidentiality** — ensure that personnel authorised to process Personal Data are bound by confidentiality.
- **Security** — implement appropriate technical and organisational measures, including:
 - encryption in transit (TLS 1.2+) and at rest (AES-256 or equivalent),
 - role-based access controls and least-privilege principles,
 - audit logs of all access to Personal Data,
 - environment isolation between Clients (multi-tenant scoping is a P0 invariant).
- **Sub-processors** — engage sub-processors only under a written contract that imposes equivalent obligations to those in this DPA.
- **Sub-processor list** — maintain the current list (see MSA §12) and give **30 days' notice** of changes.
- **Data Subject requests** — assist the Client in responding to Data Subject access, rectification, erasure, and portability requests within the timelines required by NDPR.
- **Breach notification** — notify the Client of any confirmed personal data breach **within 72 hours** of discovery, with information sufficient to enable the Client to fulfil its own NDPC notification duty.
- **Data Protection Impact Assessment (DPIA)** — provide reasonable assistance to the Client where the Client must conduct a DPIA.
- **Audit rights** — once per 12-month period, on 30 days' written notice, allow the Client (or its independent auditor under NDA) to verify ReachNG's compliance with this DPA.
- **Return / deletion** — on termination or on Client request, return or hard-delete all Personal Data (and copies) within 30 days, save where retention is required by Nigerian law.

[LAWYER REVIEW] — confirm 72-hour breach window and 30-day deletion are aligned with current NDPC guidance.

7. Cross-border transfers

Where Personal Data leaves Nigeria via sub-processors (AWS Cape Town, AWS Frankfurt, Anthropic in the US, Unipile in the EU), ReachNG ensures an adequate level of protection by:

- choosing sub-processors with recognised data-protection frameworks,
- relying on the contractual safeguards built into each sub-processor's standard terms,
- documenting the lawful transfer basis under the NDPR cross-border transfer rules.

[LAWYER REVIEW] — confirm whether NDPC currently requires SCCs or other instruments; update if so.

8. Suppression and opt-outs

Any inbound reply classified as opted_out (typical triggers: STOP, UNSUBSCRIBE, REMOVE, "stop messaging me") is **immediately and permanently** added to a per-Client suppression list. The Data Subject is **never re-messaged** on any campaign on the Platform.

If a Data Subject contacts the Client directly to opt out, the Client must mark them opted-out in the portal.

9. Records of Processing

ReachNG maintains records of processing activities in line with the NDPR Article 5(1)(c) requirements. The Client may request a copy on reasonable notice.

10. Data Protection Officer (DPO)

- The **Client** confirms whether it has appointed a DPO and provides DPO contact details.
- **ReachNG** has appointed [REACHNG DPO NAME, EMAIL] as its DPO.

***[LAWYER REVIEW]** — advise whether ReachNG must formally appoint a DPO at our current scale, or only above the 10K-records threshold.*

11. Liability

The liability provisions in MSA §7 apply to claims arising under this DPA, **except** that no cap or exclusion limits a party's obligation to pay regulatory fines, penalties, or sanctions imposed by NDPC on the other party as a direct consequence of that party's breach of this DPA.

12. Order of precedence

Where any conflict arises between this DPA and the MSA, this DPA prevails on data-protection matters.

Signature block

ReachNG (Processor)

Signed: _____ Name: [REACHNG SIGNATORY] Title: [TITLE] Date:

Client (Controller)

Signed: _____ Name: [CLIENT SIGNATORY] Title: [TITLE] Date:
